IN THE UNITED STATES BANKRUPTCY COURT
EASTERN DISTRICT OF WISCONSIN

In re:

DEAN RICHARD VONGERMETEN,

Debtor.

DEAN RICHARD VONGERMETEN,

Plaintiff,

v.

Suzy Lindblom, COO, Terry Smith, CEO, Alejandro Hoyos: Trustee, Christopher Drout, Mark Clauss, Michael Dimand, William Patacsil,

Defendants.

Chapter 13

Case No. 21-25409-rmb

Adversary Case No. 22-02024-rmb

NOTICE OF MOTION OF MARK CLAUSS, CHRISTOPHER DROUT AND SUZY LINDBLOM TO DISMISS ADVERSARY COMPLAINT

Dated: April 8, 2022

TO: ALL PARTIES AND COUNSEL OF RECORD

PLEASE TAKE NOTICE that defendants, Mark Clauss, Christopher Drout and Suzy Lindblom hereby move the Court to dismiss the plaintiff's adversary complaint against them, in its entirety and with prejudice, for failure to state a claim upon which relief may be granted, pursuant to Fed. R. Civ. P. 12(b)(6) and Fed. R. Bankr. P. 7012. The bases for the motion are set forth in the accompanying motion and brief, together with other papers heretofore filed and served in this action.

Dated this 8th day of April, 2022.

GRAY & ASSOCIATES, L.L.P.
Attorneys for Defendants

By: _____
Christopher C. Drout
State Bar No. 1049882

Notice of Motion

PLEASE TAKE NOTICE that the defendants, Mark Clauss, Christopher Drout and Suzy Lindblom, have filed the attached Motion of Mark Clauss, Christopher Drout and Suzy Lindblom to Dismiss Adversary Complaint and Brief in Support of Motion to Dismiss Adversary Complaint (together, the "Motion").

If you want the court to consider your views on the Motion, or want a hearing, you must file and serve a written objection no later than 14 days after the date of service of this notice (LR 9014-1(a)(2)(A)). An objection must be filed with the Clerk of the Bankruptcy Court and served on the movant. Absent a timely filed objection, the court may grant the relief requested without a hearing (LR 9014-1(a)(2)(B)). If no objection is timely filed, the movant will file a proposed order as required by LR 9014-2. If a timely objection is filed, the court may schedule a hearing, and the Clerk will give notice of the hearing (LR 9014-1(a)(3)).

Respectfully submitted,

/s/ Christopher C. Drout
Gray & Associates, L.L.P.
State Bar No. 1049882
16345 West Glendale Drive
New Berlin, WI 53151
414.224.8404
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IN THE UNITED STATES BANKRUPTCY COURT
EASTERN DISTRICT OF WISCONSIN

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EASTERN DISTRICT OF WISCONSIN

In re:

DEAN RICHARD VONGERMETEN

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Chapter 13

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In re:

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Case No. 21-25409-rmb
Chapter 13

DEAN RICHARD VONGERMETEN,

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Defendants.

Adversary Case No. 22-02024-rmb

MOTION OF MARK CLAUSS, CHRISTOPHER DROUT AND SUZY LINDBLOM TO DISMISS ADVERSARY COMPLAINT

The defendants, Mark Clauss, Christopher Drout and Suzy Lindblom, through their attorneys, Gray & Associates, L.L.P., do hereby move the court pursuant to Federal Rule of Civil Procedure 12 (b)(6) incorporated into Federal Rule of Bankruptcy Procedures 7012 for the dismissal of this adversary proceeding with prejudice. The defendants' motion is based upon the following:

Motion of Mark Clauss, Christopher Drout and Suzy Lindblom to Dismiss Adversary Complaint

The defendants, Mark Clauss, Christopher Drout and Suzy Lindblom, through their attorneys, Gray & Associates, L.L.P., do hereby move the court pursuant to Federal Rule of Civil Procedure 12(b)(6) incorporated into Federal Rule of Bankruptcy Procedure 7012, for the dismissal of this adversary proceeding with prejudice. The defendants' motion is based upon the following:

1. The plaintiff fails to state a claim for which relief can be granted.

2. The plaintiff's claims are barred by binding precedent as the U.S. District Court for the Eastern District of Wisconsin and the United States Court of Appeals for the Seventh Circuit both decided his claims against Planet Home Lending, LLC and its attorneys were dismissed with prejudice. Specifically, the plaintiff commenced a separate federal civil action against the defendant and its counsel in the U.S. District Court for the Eastern District of Wisconsin making the same and/or similar claims as in this adversary proceeding. That action was dismissed with prejudice by the E.D. Wis. federal court, and the dismissal with prejudice was affirmed on appeal by the Seventh Circuit.

Drafted by:
Christopher C. Drout
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as in this adversary proceeding. That action was dismissed with prejudice by the E.D. Wis. Federal Court and the dismissal with prejudice was affirmed on appeal by the Seventh Circuit. Copies of the federal court order and the court of appeals decision are attached hereto as Exhibits A and B and their contents are incorporated herein by reference.

3. The plaintiff's claims are barred by res judicata and the equitable doctrine of claim preclusion. The mortgage in question is subject to a state court foreclosure judgment. Defendant, "Planet Home Lending, LLC", was awarded judgment of foreclosure on February 14, 2020. The plaintiff appealed this foreclosure judgment and later voluntarily dismissed the appeal. Application of the doctrine here is warranted "to establish and fix the rights of individuals, to relieve parties of the costs and vexation of multiple lawsuits, to conserve judicial resources, to prevent inconsistent decisions, and to encourage reliance on adjudication." *Kruckenberg v. Harvey*, 2005 WI 43, ¶ 20, 279 Wis.2d 520, 694 N.W.2d 879. A copy of the state court foreclosure judgment was attached to Planet Home Lending, LLC's proof of claim number 1 and is incorporated herein by reference as Exhibit C.

4. The plaintiff's claims are barred by the Rooker-Feldman Doctrine which prohibits "state-court losers complaining of injuries caused by state-court judgments" from inviting federal court review and rejection of such judgments. *Exxon Mobil Corp. v. Saudi Basic Indus. Corp.*, 544 U.S. 280, 284 (2005). The Honorable G. Michael Halfenger had issued a Decision and Order dismissing the plaintiff's previous adversary proceeding based upon the Rooker-Feldman Doctrine and lack of jurisdiction. *Kongermeten v. Clauss (In re Kongermeten)*, Case No. 20-25056-gmh (Bankr. E.D. Wis. Jan. 5, 2021).

WHEREFORE, the defendants request that the Complaint be dismissed, in its entirety, and with prejudice and requests the Court bar plaintiff from filing future adversary complaints against defendants.

Respectfully submitted this 8th day of April, 2022.

GRAY & ASSOCIATES, L.L.P.
Attorneys for Defendants

By: /s/ Christopher C. Drout

Christopher C. Drout
State Bar No. 1049882

ours p.4 (red) over filed p.2 (blue)

IN THE UNITED STATES BANKRUPTCY COURT
EASTERN DISTRICT OF WISCONSIN

In re:
Dated: April 8, 2022

DEAN RICHARD VONGERMETEN

Debtor.

Chapter 13

Case No. 21-25409-rmb

Respectfully submitted,

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Plaintiff,

v.

Suzy Lindbolm COO, Terry Smith CEO, Alejandro Hoyos: Trustee, Christopher Drout, Mark Clauss, Michael Dimand, William Patacsil,

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/s/ Christopher C. Drout

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Adversary Case No. 22-02024-rmb

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The defendants, Mark Clauss, Christopher Drout and Suzy Lindblom, through their attorneys, Gray & Associates, L.L.P., do hereby move the court pursuant to Federal Rule of Civil Procedure 12 (b)(6) incorporated into Federal Rule of Bankruptcy Procedures 7012 for the dismissal of this adversary proceeding with prejudice. The defendants' motion is based upon the following:

1. The plaintiff fails to state a claim for which relief can be granted.

2. The plaintiff's claims are barred by binding precedent as the U.S. District Court for the Eastern District of Wisconsin and the United States Court of Appeals for the Seventh Circuit both decided his claims against Planet Home Lending, LLC and its attorneys were dismissed with prejudice. Specifically, the plaintiff commenced a separate federal civil action against the defendant and its counsel in the U.S. District Court for the Eastern District of Wisconsin making the same and/or similar claims

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UNITED STATES BANKRUPTCY COURT
IN THE UNITED STATES BANKRUPTCY COURT
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Dean Richard Vongermeten
Debtor.

DEAN RICHARD VONGERMETEN

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Chapter 13
Case No. 21-25409-rmb
Chapter 13

Case No. 21-25409-rmb

Dean Richard Vongermeten,
DEAN RICHARD VONGERMETEN,

Plaintiff,

v.

Plaintiff,

v.

Suzy Lindblom COO, Terry Smith CEO, Alejandro Hoyos, Trustee, Christopher Drout, Mark Clauss, Michael Dimand, William Patacsil,

Suzy Lindblom COO, Terry Smith CEO, Alejandro Hoyos: Trustee, Christopher Drout, Mark Clauss, Michael Dimand, William Patacsil,

Defendants

Adversary Case No. 22-02024-rmb

Adversary Case No. 22-02024-rmb

Defendants.

BRIEF IN SUPPORT OF MOTION TO DISMISS ADVERSARY COMPLAINT

Brief in Support of Motion to Dismiss Adversary Complaint

INTRODUCTION

INTRODUCTION

Plaintiff, Dean Richard Vongermeten, continues to assert frivolous and bad-faith claims that have been denied in cases conducted in the Wisconsin Circuit Court for Racine County, the U.S. District Court for the Eastern District of Wisconsin, the U.S. Court of Appeals for the Seventh Circuit, and the Eastern District Bankruptcy Court of Wisconsin. Plaintiff's "claims" fail to state a claim for which relief can be granted and are barred by binding precedent, the doctrines of res judicata, claim preclusion and the Rooker-Feldman doctrine. Plaintiff's claims fail as a matter of law and should be dismissed with prejudice pursuant to Federal Rule of Civil Procedure 12(b)(6) incorporated into Federal Bankruptcy Rule 7012.

Plaintiff, Dean Richard Vongermeten[1], continues to assert frivolous and bad-faith claims that have been denied in cases conducted in the Wisconsin Circuit Court for Racine County, U.S. District Court for the Eastern District of Wisconsin, U.S. Court of Appeals for the Seventh Circuit and the Eastern District Bankruptcy Court of Wisconsin. Plaintiff's "claims" fail to state a claim for which relief can be granted and are barred by binding precedent, the doctrines of res judicata, claim preclusion and the Rooker-Feldman Doctrine. Plaintiff's claims fail as a matter of law and should be dismissed with prejudice pursuant to Federal Rule of Civil Procedure 12(b)(6) incorporated into Federal Bankruptcy Rule 7012.

I. BACKGROUND

On October 31, 2011, Plaintiff borrowed $30,000.00 from Flagstar Bank, FSB, its successors and assigns. In exchange for the funds, Plaintiff executed a Note and Mortgage pledging real property

[1] The plaintiff uses several variations of his name in the underlying bankruptcy case, federal court cases and foreclosure case such as Dean R. Vongermeten a/k/a Dean R. vongermeten, an unmarried man dba Dean R. Vongergeten a/k/a Dean Richard Von Germeten d/b/a Dean R. vongermeten, an unmarried man a/k/a Dean Richard vonGermeten d/b/a Dean Von Geremeten, single, Dean R. VonGermeten a/k/a Dean vonGermenten a/k/a Dean Richard Von Germeten a/k/a Dean Richard vonGermeten a/k/a Dean Von Geremeten a/k/a vonGermeten, Dean R.

located at 1921 Thurston Ave, Racine, Wisconsin (the "Property") as security for the debt. Thereafter,

I. BACKGROUND

On October 31, 2011, Plaintiff borrowed $30,000.00 from Flagstar Bank, FSB its successors and assigns. In exchange for the funds, Plaintiff executed a Note and Mortgage pledging real property located at 1921 Thurston Ave., Racine, Wisconsin (the, "Property") as security for the debt. Thereafter, Plaintiff was notified by both Flagstar Bank, FSB and Planet Home Lending, LLC (hereinafter "Planet") that the loan was assigned to Planet in February 2016.

Plaintiff filed a civil case against Planet in the U.S. District Court for the Eastern District of Wisconsin which was dismissed with prejudice on July 2, 2019. *Von Germeten v. Planet Home Lending, LLC*, No. 17-cv-167-pp, 2019 WL 2234577 (E.D. Wis. July 2, 2019).[2] Plaintiff's civil case appeared to demand that the mortgage somehow be released. Plaintiff was ultimately barred from filing in that Court for his frivolous and continued paper assault even after having been admonished several times. Attached hereto and incorporated by reference as Exhibit A is a copy of the Dismissal Order.

Plaintiff continued his frivolous and harassing tactics on appeal to the United States Court of Appeals for the Seventh Circuit. The Seventh Circuit also found his filings to be frivolous, admonished him from continued action and ultimately upheld the District Court's dismissal with prejudice. See *Dean von Germeten v. Planet Home Lending, LLC*, No. 19-2459 (7th Cir. Nov. 20, 2019 and Jan. 10, 2020). Attached hereto and incorporated by reference as Exhibit B are copies of one of the admonitions and affirmation order.

Planet initiated a foreclosure action on October 4, 2019, in Racine County Circuit Court Case 19-CV-001616 against Plaintiff to enforce a default with respect to the note and mortgage securing the property.

Plaintiff also filed a Chapter 13 bankruptcy case on July 22, 2020, which was dismissed on March 12, 2021. [Case No. 20-25056-gmh, ECF Doc. No. 120]. During that bankruptcy case, the debtor commenced an adversary proceeding against the defendants alleging the same or similar claims

[2] The court is entitled to take judicial notice of judicial proceedings in the Federal Court and State Court Cases. *Williamson v. Curran*, 714 F.3d 432, 436 (7th Cir. 2013). *In the Matter of Lisse*, 905

as alleged in this adversary proceeding, which was dismissed based upon the Rooker-Feldman doctrine and lack of jurisdiction. *Vongermeten v. Clauss (In re Vongermeten)*, Case No. 20-25056-gmh (Bankr. E.D. Wis. Jan. 5, 2021).

Now, despite having been repeatedly admonished in every forum, Plaintiff continues to attempt to relitigate these patently frivolous arguments in his bankruptcy case through this adversary proceeding. He continues to harass parties involved in the court actions by naming them as defendants in this adversary proceeding, more specifically, the attorneys that represent Planet and an individual that was employed by Planet. Plaintiff continues to ignore the numerous Federal and State Court decisions that deemed his arguments as frivolous and "…'clearly baseless, fanciful, fantastic delusional irrational and wholly incredible'…" *Von Germeten v. Planet Home Lending, LLC*, No. 17-cv-167-pp, p.17 (E.D. Wis. March 21, 2019). (An excerpt of the order is attached hereto and incorporated by reference as Exhibit G).

A sheriff's sale scheduled for October 19, 2021, was cancelled because the debtor filed the current Chapter 13 bankruptcy case on October 9, 2021. [Case 21-25409-rmb, CM/ECF Doc. No. 1]. The Court entered an order on February 4, 2022, confirming termination of the automatic stay pursuant to 11 U.S.C. 362(c)(3). [*Id.* at Doc. No. 89]. The plaintiff has now filed this adversary proceeding against the defendants, and as has been decided by three previous courts, Plaintiff's claims are baseless and must be dismissed with prejudice. The defendants further request that the Court bar plaintiff from filing future adversary complaints against the defendants under Bankruptcy Rule 9011(c)(1)(B).

II. STANDARD OF REVIEW

A motion to dismiss under Federal Rule of Civil Procedure 12(b)(6) challenges the sufficiency of the complaint to state a claim upon which relief can be granted and is applicable in bankruptcy proceedings. Fed. R. Bankr. P. 7012(b). When determining a motion to dismiss under Rule 12(b)(6), a court views all of the facts alleged in the complaint, as well as any inferences to be reasonably drawn from them in the light most favorable to the plaintiff. *See Village of Rosemont v. Jaffe*, 482 F.3d 926, 936 (7th Cir. 2007). "Notice" pleading requires only that the complaint contain

2008) ("a court is of course entitled to take judicial notice of judicial proceedings").

misconduct, the complaint has alleged—but it has not 'show[n]'—'that the pleader is entitled to relief.'" *Id.* at 679. Based on this standard, Plaintiff fails to state a claim against the defendants because the complaint contains mere "naked assertions" of violations of unspecified regulations and provides no supporting factual allegations.

III. ARGUMENT

A. Plaintiff's Claims are Barred by Binding Precedent from the U.S. District Court for the Eastern District of Wisconsin and the U.S. Court of Appeals for the Seventh Circuit.

Plaintiff has been unsuccessful with these alleged claims in four different courts: (1) Wisconsin Circuit Court for Racine County; (2) U.S. District Court for the Eastern District of Wisconsin, (3) U.S. Court of Appeals for the Seventh Circuit and (4) Eastern District Bankruptcy Court of Wisconsin. Again, the plaintiff seeks to collaterally attack the State Court, Federal Court, Appellate Court and Bankruptcy Court orders through this adversary proceeding. As other bankruptcy courts have observed, "[n]othing in the history or structure of the Bankruptcy Code suggests that Congress ever intended the code as simply providing an alternative federal forum for the resolution of state law claims, let alone serving as a forum of last resort when a litigant had been unsuccessful in other courts." *In re Sawyer*, No. 07-10252, 2007 WL 1725627 at *7 (Bankr. E.D. Va. June 13, 2007).

This court should be bound by precedential authority from the Seventh Circuit Court of Appeals which affirmed the dismissal with prejudice order of the U.S. District Court for the Eastern District of Wisconsin with respect to the plaintiff's claims. *Miller v. United States*, 868 F. 2d 236, 241 (7th Cir. 1989) see also *U.S. Ex Rel. Shore v. O'Leary*, 833 F.2d 663, 667 (7th Cir. 1987). Consequently, this Court must follow the precedential authority of the Seventh Circuit and dismiss this adversary proceeding with prejudice.

B. Plaintiff's Claims are Barred by the Application of the Rooker-Feldman Doctrine.

The *Rooker-Feldman* doctrine is jurisdictional in nature; its applicability must be determined before any other affirmative defense, including claim preclusion. *Long v. Shorebank Dev. Corp.*, 182 F.3d 548, 554-55 (7th Cir. 1999) (citing *Gary v. Geils*, 82 F.3d 1362, 1365 (7th Cir. 1996)). Under this doctrine, "lower federal courts do not have subject matter jurisdiction over claims seeking review of state court

judgments." *Id.* at 554. The doctrine applies both to claims actually raised before the state court and to claims that are "inextricably intertwined with state court determinations." *Id.*

As its name implies, the Rooker-Feldman doctrine had its genesis in two landmark decisions.

In *Rooker v. Fidelity Trust Co.*, 263 U.S. 413 (1923), the U.S. Supreme Court held that federal district courts are empowered to exercise only original and not appellate jurisdiction, and that Congress had empowered the Supreme Court alone to exercise appellate authority to reverse or modify a state court judgment. Therefore, U.S. district courts lack jurisdiction over suits seeking reversal or modification of state court judgments.

Similarly in *District of Columbia Court of Appeals v. Feldman*, 460 U.S. 462 (1983), the Supreme Court referred to its *Rooker* decision when holding that a federal district court lacked subject matter jurisdiction to review a final determination of a state court, because 28 U.S.C. § 1257 vests authority to review a state court's judgment solely in the U.S. Supreme Court.

[Argument C (claim preclusion under Wisconsin law) is omitted from this transcription.]

D. Plaintiff's Claims against Mark Clauss and Christopher Drout are barred by Wisconsin's Litigation Privilege

Plaintiff names Planet's attorneys, Mark Clauss and Christopher Drout, as defendants in this action. The attorneys signed the foreclosure complaint in Racine County Circuit Court and the Notice of Appearance and Proof of Claim in the bankruptcy case. Statements made by attorneys prosecuting the foreclosure action are protected by Wisconsin's litigation privilege. Actions taken by attorneys in the adversarial setting of litigation are precluded by the litigation privilege as forming a basis for further litigation. *See Probst v. Ashcroft*, 25 Fed. Appx. 469, 471 (7th Cir, 2001) and *Steffes v. Stephan Co.*, 144 F3.d 1070, 1074 (7th Cir, 1998). [Federal courts look to state law for applicability]. As the Wisconsin Supreme Court explained and has consistently held:

> [P]arties and counsel are immune from liability for relevant statements in pleadings and otherwise in the course of judicial proceedings. This absolute privilege as to statements made during judicial proceedings has been summarized to be: Parties to judicial proceedings are absolutely exempt from responsibility for libel on the ground of privilege for any defamatory matter published in the course of judicial proceedings, subject to the possible qualification that such defamatory matter is pertinent or relevant to the case. *See Bergman v. Hupy*, 64 Wis 2d 747, 750 (1974) and *State v. Cardenas-Hernandez*, 219 Wis. 2d 516, 537 (1998).

the course of judicial proceedings, subject to the possible qualification that such defamatory matter is pertinent or relevant to the case. *See Bergman v. Hupy*, 64 Wis. 2d 747, 750 (1974) and *State v. Cardenas-Hernandez*, 219 Wis. 2d 516, 537 (1998).

The Plaintiff is merely using the bankruptcy system and adversary proceeding to further harass Planet's attorneys. Accordingly, Plaintiff is barred from bringing this action against the attorneys representing Planet Home Lending, LLC.

E. The Court must impose sanctions under Bankruptcy Rule 9011(c)(1)(B).

The plaintiff's claims are being presented for improper purposes such as harassment, unnecessary delay and the increased cost of litigation. The plaintiff's allegations and factual contentions lack any evidentiary support. Furthermore, the plaintiff's claims and legal contentions are not warranted by existing law or nonfrivolous argument. Pursuant to Federal Bankruptcy Rule 9011(c)(1)(B) the court, on its own initiative, may impose a sanction against plaintiff sufficient to deter repetition of such frivolous conduct. It is apparent that mere dismissal of this adversary proceeding will not deter the plaintiff from filing future frivolous actions. The court must issue an order barring plaintiff from filing future adversary proceedings against the defendants.

CONCLUSION

For the foregoing reasons, Plaintiff's Complaint must be dismissed in its entirety and with prejudice, and further request that the Court bar plaintiff from filing future adversary proceedings against defendants.

Dated: April 8, 2022

Respectfully submitted this 8th day of April, 2022.

Respectfully submitted,
GRAY & ASSOCIATES, L.L.P.
Attorneys for Defendants
/s/ Christopher C. Drout

By: _____
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Certificate of Service

IN THE UNITED STATES BANKRUPTCY COURT
EASTERN DISTRICT OF WISCONSIN

I hereby certify that on April 8, 2022 the Motion of Mark Clauss, Christopher Drout and Suzy Lindblom to Dismiss Adversary Complaint and the Brief in Support of Motion to Dismiss Adversary Complaint were electronically filed in this case and served upon the following parties using the CM/ECF system:

In re:

DEAN RICHARD VONGERMETEN

Debtor.

Chapter 13

Case No. 21-25409-rmb

Eastern District U.S. Trustee

DEAN RICHARD VONGERMETEN,

I further certify that on the same date I mailed the same document(s) by United States Mail to the following non-ECF participants:

Plaintiff,

v.

Adversary Case No. 22-02024-rmb

Dean Richard Vongermeten
1921 Thurston Avenue
Racine, WI 53403

Suzy Lindbolm COO, Terry Smith CEO, Alejandro Hoyos Trustee, Christopher Drout, Mark Clauss, Michael Brimand, William Patacsil,

Defendants.

Dated: April 8, 2022

CERTIFICATE OF SERVICE

I hereby certify that on April, 8, 2022 the notice of motion and motion to dismiss and brief in support of motion to dismiss were electronically filed in this case and served upon the following parties using the ECF system:

Eastern District U.S. Trustee

/s/ Christopher C. Drout
Gray & Associates, L.L.P.
State Bar No. 1049882
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I further certify that on the same date, I mailed the same document(s) by the United States Postal Service to the following non-ECF participants:

Dean Richard Vongermeten
1921 Thurston Avenue
Racine, WI 53403

Dated this 8th day of April, 2022.

Christopher C. Drout, Attorney
Gray & Associates, L.L.P.

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